Tentative Rulings for June 26, 2026
Department 2

To request oral argument, you must notify Judicial Secretary Molly Frabotta at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing, you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 143 8184

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302810	WALTERS WHOLESALE ELECTRIC CO, VS ONARCH INC.	MOTION TO VACATE DISMISSAL

Tentative Ruling: GRANTED per CCP473.5

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404876	PORTOBANCO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT the motion and award Plaintiff the reduced amount as follows: $8140.00 in attorney's fees and $818.92 in costs. The total amount is $8958.92.

This is a lemon law action. On June 30, 2020, Plaintiffs Maria De Jesus Portobanco and Luis Andres Garibay purchased a 2020 GMC Sierra 1500 (the "Vehicle") that Defendant General Motors LLC (or "GM") issued an express warranty for. The Vehicle suffered defects and nonconformities that manifested during the applicable warranty period. None of the repairs performed by Defendant's authorized repair facilities have permanently repaired the defects. GM has failed to replace the Subject Vehicle or promptly make restitution as required under the Song-Beverly Act (the "Act").

The operative Complaint, filed August 22, 2024, asserts causes of action for (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

On December 30, 2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case.

Plaintiffs now move for an award of $15,050 in attorney fees and $968.92 in costs for a total of $16,018.92. Plaintiffs contend they are entitled to the foregoing as the prevailing party in the instant lawsuit, which settled a few weeks before a jury trial was to commence on January 9, 2026. Plaintiffs maintain the fees are reasonable.

In opposition, GM argues Plaintiffs failed to show the fees claimed are allowable, were reasonably necessary for litigation, and were reasonable in amount. GM contends it offered to pay attorneys' fees in the amount of $10,000 in December 2025 when Plaintiffs' billing records show they only incurred $8,445 in fees. GM requests the Court to reduce Plaintiffs' request to an amount that does not exceed $4,992.80 and $551.18 in costs.

A declaration was filed by counsel on June 18, 2026, arguing other courts here in Riverside have awarded higher billing rates.

The parties do not dispute that Plaintiffs are entitled to reasonable attorney fees and costs. As part of the parties' settlement, GM agreed to pay Plaintiffs' attorney fees and costs. (Nita Decl., ¶7; see Bowton Decl., ¶12.) At issue is the reasonableness of Plaintiffs' award request.

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra,* 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra,* 22 Cal.4th at 1095.)

Plaintiffs' fee bill is supported by itemized time records and declaration from counsel. Such verified fee bills are entitled to a presumption of reasonableness; the burden therefore falls on GM to rebut that presumption with specific evidence. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682-683.) GM must "establish with legal authority or otherwise what hours and rates would be considered reasonable." (*Etcheson v. FCA US LLC* (2018) 30 Cal.App.5th 831, 838.)

Plaintiffs provide the following breakdown of the requested attorneys' fee award:

Biller (2025)[1]	**Time**	**Rate/hr**	**Total $**
M. Nicholas Nita, Esq.	12.1	$625	$7,562.50
Justin P. Wisnewski, Esq.	1	$400	$400
Madalina Costescu, Sr. Paralegal	4.6	$250	$1,150
Jovanna Garay, Paralegal	6.4	$250	$1,600
Sophia Aguilar, Paralegal	3.3	$250	$825
Kaylee Can Wang, Law Clerk	0.6	$250	$150
Jessica Araiza, Legal Assistant	1.1	$200	$220
Jennifer Cruz, Legal Assistant	0	$200	$0
Elena Olsen Valdez, Settlement Coordinator	2.1	$200	$420
Alex Martinez, Legal Assistant	2	$150	$300

[1]Nita's declaration does not provide a biography for Paralegal Sophia Aguilar, but gives a profile for Andrew Kim, paralegal. Accordingly, the breakdown chart documents timekeepers who appear on the itemized billing invoice.

Anticipated review opp/reply/attend hg by Nicholas Nita	2.5	$625	$1562.5
		Total Fees[2]	$14,190
		Costs	$968.92
		Total Request	$15,158.92

i. Reasonable Hourly Rate

Plaintiffs provide no evidence that they could not secure a local attorney and as such, the out-of-town attorney's home market rate should not be applied. (See Plaintiff Decl.; *Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, supra,* 22 Cal.4th at 1095.)

The hourly rates do not appear to be reasonable for Riverside County. Thus, the Court should reduce the hourly rates as stated in the chart below: $550/hour for partners and senior counsel, $300/hour for associates, and $150/hour for law clerks/paralegals.

Moreover, there is no basis to have 9 timekeepers on one non-complex lemon law case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) Thus, the Court should strike a timekeeper with an hour or less time as merely superfluous, to wit: Justin P. Wisnewkski and Kaylee Wang.

ii. Reasonable Hours

[2] Plaintiffs erroneously report $15,050, which erroneously sums up the total request to $16,018.92

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

GM challenges specific billing entries.

<u>Pre-engagement Work (3.0 hours)</u>. Contrary to GM's argument, Plaintiffs are entitled to recover such costs. Plaintiff, as the prevailing party, is entitled to attorneys' fees that are "fully compensatory," and absent "circumstances rendering an award unjust," a fee award should ordinarily include compensation for all hours reasonably expended. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) This includes pre-engagement work. This request for reduction is **DENIED.**

<u>Templated Complaint (1.5 hours), Discovery Responses (3.0 hours), Expert Designation (0.4 hours)</u>. Plaintiffs' counsel asserts he developed discovery templates over years of practice to only charge a small amount of time. GM argues a reduction of the time spent on the Complaint by 1.2 hours, discovery responses by 2.2 hours, and expert designation by 0.3 hours is warranted due to the templated nature. GM provides a side-by-side comparison of the aforementioned documents across cases. (Bowton Decl., Exhs. A, B, C & D.) While templates do enable efficiency and a reduction of costs, some reduction is appropriate given the conceded templated nature of the documents and the use of six timekeepers for discovery. Thus, the Court **REDUCES** the time as follows: by 0.5 hours for the Complaint and by 1 hour for discovery. **DENY** reduction for expert designation.

<u>Motion for Attorney Fees</u>. GM requests reduction because 13.9 hours in connection with this fee motion is excessive. GM's objection is well taken. Plaintiffs seek 2.5 hours in anticipation of reviewing and analyzing the opposition, drafting a reply and

attending hearing on this motion. However, no reply was filed. Moreover, there is no reason why such a routine fee motion should require more than 4.0 hours to draft.

Clerical Error in Billing. GM disputes the June 30, 2025, entry because while it reflects Counsel only billed 0.1 hours for this task, attorney Nita recorded a full hour. It does appear this may be a clerical error. Reduction will be accounted for in the chart summary below.

Clerical Work. GM argues that Counsel billed for clerical work "throughout" the billings. However, GM fails to specify which entries despite providing specific entries in dispute for the previous categories. It is GM's burden to specify. (See *Premier Med. Mgmt. Systems, Inc. v Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Regardless, it appears work done by the settlement coordinator, Elena Olsen Valdez or "EOV", appears to be clerical. Thus, **REDUCE** by 2.1.

iii. Costs

A "prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).)

Plaintiffs filed a Memorandum of Costs seeking $968.92 for filing and motion fees, jury fees, service of process fee, and fees for electronic filing or service. These fees are allowable costs under Code of Civil Procedure section 1033.5, subdivision (a)(1), (4), and (14). Thus, the Court should award these allowable costs as required under Code of Civil Procedure section 1033.5, subdivision (c)(1).

GM argues counsel presents no evidence to support the claim for costs and disputes all of the costs as not actually or reasonably incurred. Supporting documentation such as bills or invoices are not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) "[T]he burden is on the objecting party to show [the cost] to be unnecessary or unreasonable." (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) "If the items are properly objected to, they are put in issue and burden of proof is on the party claiming them as costs." (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 774.) "The determination of the necessity and reasonableness of a particular expense [is] within the broad discretion of the court." (*Perko's Enterprises, Inc. V. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243.)

Plaintiffs failed to provide supporting documentation for costs incurred. However, it appears filing and motion fees and service of process fees are reasonable and actually incurred since the Complaint and motions were served. GM filed an Answer indicating service of process fees by Plaintiff actually incurred. (Bowton Decl., ¶4.) However, this case never went to trial. Thus, the $150 jury fee should be taxed.

The Court awards as follows:

Biller (2025)	Time	Rate/hr	Total $
M. Nicholas Nita, Esq.	10.1	$550	$5,555
Madalina Costescu, Sr. Paralegal	4.6	$150	$690
Jovanna Garay, Paralegal	4.9	$150	$735
Sophia Aguilar, Paralegal	3.3	$150	$495
Jessica Araiza, Legal Assistant	1.1	$150	$165
Jennifer Cruz, Legal Assistant	0	$150	$0
Elena Olsen Valdez, Settlement Coordinator	0	$150	$0
Alex Martinez, Legal Assistant	2	$150	$300

Anticipated review opp/reply/attend hg by Nicholas Nita	0.5	$400	$200
		Total Fees	$8,140
		Costs	$818.92
		Total Request	$8,958

The Court awards the Plaintiffs' attorney fees as follows: $8,140 and $818.92 in costs. The total amount is $8958.92.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505093	WEIR VS TRICON RESIDENTIAL	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

CONTINUE

The hearing on the motion to strike is continued. Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrers. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:
(1) vacate the hearing on the motion to strike, and file an Answer;
(2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
(3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion to strike and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 435.5.)

No further briefing will be allowed.

I. Meet and Confer

C.C.P., § 435.5 requires a meet and confer process via phone or in person before filing a motion to strike. Defense counsel's declaration merely indicates that a letter was sent. (Rasmussen Decl. ¶ 2, Exh. A.) As this is not statutorily compliant, the matter will be continued for proper meet and confer efforts as described above.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506532	MARTINEZ VS SOCIAL VOCATIONAL SERVICES, INC.	DEMURRER ON COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

SUSTAIN the demurrer to the 1st, 2nd, 3rd, 6th, and 7th causes of action.

OVERRULE the demurrer to the 4th, 5th, and 8th causes of action.

The motion to strike is moot as to Plaintiff's requests for emotional distress and punitive damages relating to the 1st, 2nd, 3rd, 6th, and 7th causes of action.

DENY the motion to strike Plaintiff's requests for emotional distress and punitive damages as to the 4th, 5th, and 8th causes of action.

*** An order was made for the parties to meet and confer. No meet and confer documents have been filed as ordered. Notwithstanding the order to meet and confer, the Court will rule on the papers submitted.

30 days leave to amend where leave was given.

This Fair Employment and Housing Act ("FEHA") action arises from Plaintiff Victor Martinez' ("Plaintiff") termination from his position with Defendant Social Vocational Services, Inc. ("Defendant").

In the Complaint, Plaintiff alleges that he began working for Defendant in December 2024. Plaintiff alleges that he is a survivor of two previous heart attacks. On

August 13, 2025, Plaintiff alleges that he began experiencing tightness in his chest and went to the emergency room because he feared he was experiencing another cardiac event. Plaintiff's medical provider placed him on a brief leave of absence from work. Accordingly, Plaintiff alleges he notified Defendant of his medical status and needed to seek medical care, and requested accommodations in the form of reassignments and job duty modifications, including not having specific one-on-one assignments with problematic clients. Plaintiff alleges that Defendant assured him that he would be accommodated.

On August 16, 2025, Plaintiff underwent an outpatient surgical procedure on his heart. Plaintiff alleges he notified Defendant of the procedure, his need for time off, and his expected return to work date. On August 19, 2025, Plaintiff contends that he had a doctor's appointment that extended his expected return to work date.

On September 24, 2025, when Plaintiff was set to return to work from his medical leave, Plaintiff alleges Defendant informed him that his employment was being terminated. Plaintiff contends that Defendant's decision to terminate him was motivated by his actual or perceived disability and need for accommodation, including medical leave and ongoing work accommodations.

Accordingly, on November 26, 2025, Plaintiff filed a Complaint against Defendant, alleging causes of action for: (1) FEHA Discrimination (Disability); (2) FEHA Failure to Accommodate; (3) FEHA Failure to Engage in the Interactive Process; (4) FEHA Retaliation; (5) FEHA Failure to Take All Reasonable Steps to Prevent Discrimination or Retaliation; (6) Violation of Lab. Code § 1102.5; (7) Violation of Lab. Code § 232.5; and (8) Wrongful Termination in Violation of Public Policy.

Defendant demurs to each cause of action for failure to state sufficient facts to constitute a cause of action. Specifically, Defendant contends that Plaintiff fails to allege sufficient facts to establish that he suffered from a protected disability, describe what specific accommodations were denied, or state that he was qualified to perform the essential functions of his position without reasonable accommodation. Defendant concurrently moves to strike Plaintiff's allegations of emotional distress and punitive damage.

In opposition, Plaintiff argues that the demurrer and motion to strike are untimely because Defendant failed to properly meet and confer. Plaintiff contends that he alleged sufficient facts to support his causes of action and claims for emotional distress and punitive damages.

In reply, Defendant argues that its demurrer and motion are timely and reiterate the arguments in the moving papers.

The Court continued the hearing and ordered the parties to meet and confer and further ordered Defendant to file a meet and confer declaration at least 10 days prior to the continued hearing date, which fell on June 16, 2026.

As of June 18, 2026, no new papers appear on eCourt.

Code of Civil Procedure sections 430.41 and 435.5 require a meet and confer in person, by telephone, or by videoconference prior to filing a demurrer or motion to strike. If the parties cannot meet and confer at least 5 days before the responsive pleading is due, the demurring party is granted an automatic 30-day extension of time to file a responsive pleading by filing and serving a declaration on or before the date the responsive pleading is due, which states that a good faith attempt to meet and confer was made and explains why the parties could not meet and confer. (C.C.P. § 430.41(a)(2).)

The evidence does not show that the parties met and conferred via the statutorily required methods, as defense counsel only emailed a meet and confer letter to Plaintiff's counsel. (Park Decl., ¶ 2 and Exh. A.) Plaintiff contends that the demurrer and motion to strike are untimely because defense counsel waited until the last day to send the meet and confer letter and grant itself the automatic 30-day extension. However, the extension automatically applies "[i]f the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due." (C.C.P. § 430.41(a)(3).) Here, Plaintiff does not dispute that the parties were not able to meet and confer before the deadline, and there is no evidence that Plaintiff responded to defense counsel's meet and confer letter in the month before Defendant filed the demurrer and motion to strike. Accordingly, the demurrer and motion to strike are timely.

However, because the meet and confer efforts were deficient, the Court continued the hearing and ordered the parties to meet and confer in person, via telephone, or by videoconference. The Court also ordered Defendant to submit a meet and confer declaration 10 days before the continued hearing date, which fell on June 16, 2026.

As of June 18, 2026, no new papers have been posted on eCourt. If no supplemental meet and confer declaration has been filed by the date of the hearing, the Court may consider setting an OSC re: sanctions for Defendant's to comply with the Court's April 2, 2026 Minute Order requiring Defendant to submit a supplemental meet and confer declaration.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.)

The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A complaint, with certain exceptions, need only contain a "statement of the facts constituting the cause of action, in ordinary and concise language" (C.C.P. § 425.10(a)(1)) and will be upheld "so long as the pleading gives notice of the issues sufficient to enable preparation of a defense." (*Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.)

In general, the allegations in a pleading are liberally construed with a view to substantial justice between the parties. (C.C.P. § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1238.)

FEHA makes it an unlawful employment practice to discharge an employee or discriminate against them in the terms, conditions or privileges of employment because of an employee's protected status, including physical disability and medical condition, if the employee is able to perform essential duties with reasonable accommodations that would not endanger the employee's health or safety or the health or safety of others. (Gov. Code § 12940(a).)

"A prima facie case of disability discrimination under FEHA requires a showing that (1) the plaintiff suffered from a disability, (2) the plaintiff was otherwise qualified to do his or her job, with or without reasonable accommodation, and (3) the plaintiff was subjected to adverse employment action because of the disability." (*Castro-Ramirez v. Dependable Highway Express, Inc.* (2016) 2 Cal.App.5th 1028, 1037.)

"Physical disability" includes having any physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss that: (1) affects one or more of the following body systems: neurological, immunological, musculoskeletal, special sense organs, respiratory, including speech organs, cardiovascular, reproductive, digestive, genitourinary, hemic and lymphatic, skin, and endocrine; and (2) limits a major life activity. (Gov. Code § 12926(m).) A physiological disease, disorder, condition, cosmetic disfigurement, or anatomical loss limits a major life activity if it makes the achievement of the major life activity difficult. (Gov. Code § 12926(m)(ii).) "Major life activities" shall be broadly construed and includes physical, mental, and social activities and working. Gov. Code § 12926(m)(iii).)

Here, Plaintiff alleged sufficient facts to show that he notified Defendant that he had a physical disability that affected his cardiovascular system and limited a major life activity, including working. Specifically, Plaintiff alleges that he notified Defendant "of his medical status and need to seek medical care" after he went to the emergency room for tightness in his chest, and again notified Defendant of his outpatient surgical cardiac procedure and need for time off of work. (Complaint, ¶ 11, 13.) Plaintiff further alleges that he sought accommodation for his medical status, including avoiding one-on-one assignments with problematic clients. (Complaint, ¶ 12.)

However, the Complaint fails to allege that Plaintiff was otherwise qualified to do his job with or without reasonable accommodation, as required to state a prima facie cause of action for disability discrimination in violation of FEHA.

Thus, the Court **SUSTAINS** the demurrer to the **first cause of action for disability discrimination**, with leave to amend.

A. Second Cause of Action for Failure to Accommodate in Violation of FEHA

Employers must make reasonable accommodation for the known disabilities of employees to enable them to perform a position's essential functions, unless doing so would produce undue hardship to the employer's operation. (Gov. Code, § 12940(m); *Fisher v. Superior Court* (1986) 177 Cal.App.3d 779, 783.) Under Government Code section 12940(m), an employer is liable for failure to accommodate where an employee requests specific and available reasonable accommodation that the employer fails to provide. (*Nadaf-Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 983.)

The elements of a failure-to-accommodate claim are: (1) the plaintiff has a disability under the FEHA; (2) the plaintiff is qualified to perform the essential functions of the position; and (3) the employer failed to reasonably accommodate the plaintiff's disability. (*Lui v. City and County of San Francisco* (2012) 211 Cal.App.4th 962, 970.)

As discussed above, Plaintiff fails to allege any facts to state that he was qualified to perform the essential functions of his position. Accordingly, the Court **SUSTAINS** the demurrer to the **second cause of action for failure to accommodate**, with leave to amend.

B. Third Cause of Action for Failure to Engage in the Interactive Process in Violation of FEHA

An employer has an obligation to engage in a "timely, good faith interactive process ... in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability of known medical condition." (Gov. Code, § 12940(n).) "The purpose of the interactive process is to determine what accommodation is required." (*A.N. v. Albertsons, LLC* (2009) 178 Cal.App.4th 455, 464.)

"It is an employee's responsibility to understand his or her own physical or mental condition well enough to present to the employer at the earliest opportunity with a concise list of restrictions which must be met to accommodate the employee." (*Jensen v. Wells Fargo* (2000) 85 Cal.App.4th 245, 266.) The employee has the burden of proving that there is a reasonable accommodation available before an employer will be held liable. (*Nadaf-Rebrov*, *supra*, 166 Cal.App.4th at 984 ["[T]he availability of a reasonable accommodation is a prerequisite to liability under section 12940(n)."].)

Here, Plaintiff alleges he sought reasonable accommodation for his disability, including avoiding specific one-on-one assignments with Defendant's problematic clients. (Complaint, ¶ 12.) Plaintiff also alleges that Defendant assured him that he would be accommodated. (*Id*.) Although Plaintiff alleges that Defendant terminated him before he could return to work, Plaintiff's own allegations show that Defendant did engage in an interactive process to determine his accommodations before terminating him.

Accordingly, the Court **SUSTAINS** the demurrer to the **third cause of action for failure to engage in the interactive process**, with leave to amend.

C. Fourth Cause of Action for Retaliation in Violation of FEHA

FEHA protects employees from retaliation for requesting accommodations. (Gov. Code, §12940(l)(4).) To establish a prima facie case for retaliation, plaintiff must show that: (1) plaintiff engaged in a protected activity; (2) the employer subjected plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the employer's action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1044.)

"An employee engages in protected activity when she or he has opposed any practices forbidden under the FEHA, or testified, or assisted in any proceeding under the FEHA." (*Paleny v. Fireplace Products U.S., Inc.* (2024) 103 Cal.App.5th 199, 213.) A causal link may be established by inference derived from circumstantial evidence, including the proximity in time between the protected action and alleged retaliatory employment decision. (*Morgan v. Regents of Univ. of Calif.* (2000) 88 Cal.App.4th 52, 69.)

It is unlawful for an employer to retaliate against an employee for requesting reasonable accommodation for a known physical disability. (Gov. Code § 12940(m); *see also Moore, supra,* 248 Cal.App.4th at 245-246.)

Here, Plaintiff alleges that he notified Defendant of his physical disability, specifically his cardiac issues that required outpatient surgery, and sought reasonable accommodation for his medical issue by avoiding one-on-one assignments with problematic clients. (Complaint, ¶ 11-13.) Plaintiff further alleges that Defendant terminated him before he returned from medical leave in retaliation for, among other things, requesting accommodation. (Complaint, ¶ 14.) Accordingly, Plaintiff has alleged sufficient facts to state a claim for retaliation in violation of FEHA.

Thus, the Court **OVERRULES** the demurrer to the **fourth cause of action for retaliation in violation of FEHA**.

D. Fifth Cause of Action for Failure to Prevent Discrimination or Retaliation in Violation of FEHA

Government Code §12940(k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination and harassment. Retaliation is a form of discrimination actionable under section 12940(k), therefore making it unlawful for an employer to fail to prevent retaliation. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1239-1240, *disapproved of on other grounds by Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158.) The general elements include a duty of care, breach, causation and damages. (*See Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent if there is no underlying claim. (*Id.* at 284.)

Defendant argues that no liability exists for failure to take steps necessary to prevent discrimination and retaliation if no underlying claim has been found to exist. However, the Complaint sufficiently states a cause of action for retaliation.

As such, the Court **OVERRULES** the demurrer to the **fifth cause of action for failure to prevent discrimination and retaliation in violation of FEHA**.

E. Sixth Cause of Action for Violation of Labor Code § 1102.5

Under Labor Code section 1102.5, an employer shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information to a government or law enforcement agency, or to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance. (Lab. Code § 1102.5(b).)

To establish a prima facie case of retaliation under Labor Code section 1102.5, a plaintiff must make a showing that: (1) he engaged in a protected activity; (2) his employer subjected him to an adverse employment action; and (3) a causal link between the two. (*Edgerly v. City of Oakland* (2012) 211 Cal.App.4th 1191, 1199.) "[P]rotected disclosure under section 1102.5(b) encompasses reports or complaints of a violation made to an employer or agency even if the recipient already knows of the violation." (*People ex rel. Garcia-Brower v. Kolla's, Inc*. (2023) 14 Cal.5th 719, 734.)

Although the sixth cause of action states that Plaintiff complained of illegal practices, including a discriminatory work environment (Complaint, ¶ 71), there are no factual allegations to support that Plaintiff made any such complaints. Rather, the Complaint only alleges that Plaintiff left work to go to the emergency room on August 13, 2025, notified Defendant of his need for medical leave and accommodations, underwent outpatient surgery on August 16, 2025, and was terminated before he returned to work. (Complaint, ¶ 11-14.) Plaintiff fails to allege any facts to state that he complained of a discriminatory work environment or engaged in protected disclosure.

Thus, the Court **SUSTAINS** the demurrer to the **sixth cause of action for violation of Labor Code § 1102.5, with leave to amend**.

F. Seventh Cause of Action for Violation of Labor Code § 232.5

Labor Code § 232.5(c) precludes an employer from "[d]ischarg[ing], formally disciplin[ing], or otherwise discriminat[ing] against an employee who discloses information about the employer's working conditions."

Notably, "working conditions" are not defined under the statute, and there is scant case law on the issue. Although Defendant contends that section 232.5 does not apply to FEHA-related allegations, Defendant cites to no legal authority in support of its argument. (Demurrer, pp. 5-6.)

Notwithstanding the foregoing, there is no allegation that Plaintiff suffered adverse employment actions because he "disclosed" his alleged working conditions. (*See Glassdoor, Inc. v. Superior Court* (2017) 9 Cal.App.5th 623, 638 [equating disclosure under Lab. Code § 232.5 to publication]; *see also Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1046, n. 12 [confidentiality agreement purporting to preclude public disclosure of working conditions would be invalid under Lab. Code § 232]; *Tam v. Qualcomm, Inc.* (S.D. Cal. 2018) 300 F.Supp.3d 1130, 1149 ["Plaintiff's section 232.5 cause of action fails because Plaintiff does not allege any facts supporting the statute's requirement that an employee disclose information about the employer's working conditions"].) Although the seventh cause of action states that "Plaintiff made disclosures of illegal conduct by Defendants, including the violations of FEHA discussed above" (Complaint, ¶ 78), the Complaint does not contain any factual allegations regarding Plaintiff's disclosures.

Thus, the Court **SUSTAINS** the demurrer to the **seventh cause of action for violation of Labor Code § 232.5, with leave**.

G. Eighth Cause of Action for Wrongful Termination in Violation of Public Policy

The cause of action for wrongful termination in violation of public policy is an exception to the general rule that an employer has an unfettered right to terminate an at-will employee. (*Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167, 169-170.) To prevail, the plaintiff must demonstrate: (1) an employer-employee relationship; (2) the termination of plaintiff's employment was a violation of public policy; and (3) the termination caused plaintiff's damage. (See *Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426, n. 8.) Particularly, the plaintiff must establish that she was terminated in violation of a policy that is: (1) based in either constitutional or statutory provisions; (2) public, in the sense that it inures a benefit to the public rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and

(4) substantial and fundamental. (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894.)

Here, Plaintiff states sufficient facts to constitute claims for wrongful termination based on retaliation. Accordingly, the Court **OVERRULES** the demurrer to the **eighth cause of action for wrongful termination in violation of public policy, with leave**.

I. Motion to Strike

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike [a pleading] or any part thereof[.]" (C.C.P. § 435(b)(1).) The Court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, "[s]trike out any irrelevant, false, or improper matter inserted in any pleading." (C.C.P. § 436(a).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (C.C.P. § 437(a).)

As a preliminary matter, the motion to strike emotional distress and punitive damages from the 1st, 2nd, 3rd, 6th, and 7th causes of action are **MOOT** because the Court sustains the demurrer to these causes of action.

Accordingly, only the emotional distress and punitive damages relating to the 4th, 5th, and 8th causes of action for FEHA retaliation, failure to prevent such retaliation, and wrongful termination in violation of public policy remain at issue.

Generally, claims for emotional distress arising from routine employment relationship actions are barred by the workers' compensation exclusivity rule. (*Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 160 ["when the misconduct attributed to the employer is actions which are a normal part of the employment relationship, such as demotions, promotions, criticism of work practices, and frictions in negotiations as to grievances, an employee suffering emotional distress causing disability may not avoid the exclusive remedy provisions of the Labor Code by characterizing the employer's decisions as manifestly unfair, outrageous, harassment, or intended to cause emotional disturbance resulting in disability. The basis of compensation and the exclusive remedy provisions is an injury sustained and arising out of the course of employment (former Lab. Code, §§ 3600, 3601), and when the essence of the wrong is personal physical injury or death, the action is barred by the exclusiveness clause no matter what its name or technical form if the usual conditions of coverage are satisfied."].)

Defendant contends that Plaintiff's claims of emotional distress are all work-related, and as such, are barred by the workers' compensation exclusivity rule. Plaintiff contends that Defendant's FEHA violations are not subject to workers' compensation preemption.

"The workers' compensation law applies to employee injuries 'arising out of and in the course of the employment' when the statutorily specified 'conditions of compensation concur.' (Lab. Code, § 3600.) Generally, workers' compensation is the exclusive remedy for such injuries. (*Id*., §§ 3600, subd. (a), 3601.) However, for example, discrimination and harassment based on race, national origin, or sex is not a normal incident of employment, and accordingly, a claim for damages under the Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) (FEHA) would not be barred by the exclusive remedy provisions of the Workers' Compensation Act. Some claims, including those based on sexual or racial discrimination or other conduct contrary to fundamental public policy, are not subject to the exclusivity provisions of the workers' compensation law. Thus, such claims may be the subject of both workers' compensation proceedings and civil actions. The Legislature did not intend that its objective of providing relief from civil rights violations would be defeated by the exclusive remedy provision of the workers' compensation act." (*Camacho v. Target Corporation* (2018) 24 Cal.App.5th 291, 300-301 [internal punctuation and citations omitted].)

Similarly, claims of unlawful retaliation in violation of FEHA fall outside of the compensation bargain and, as such, claims of emotional distress based on such retaliation are not subject to the workers' compensation exclusivity doctrine. (*Light v. Dep't of Parks & Recreation* (2017) 14 Cal.App.5th 75, 102 [holding that a claim for intentional infliction of emotional distress based on unlawful retaliation in violation of FEHA is not subject to workers' compensation exclusivity].)

Here, Plaintiff alleges he has suffered severe emotional damages as a result of Defendant's retaliation, failure to prevent such retaliation, and wrongful termination in violation of public policy. (Complaint, ¶ 55, 61, 87.) Accordingly, Plaintiff's claims for emotional distress damage arise from Defendant's conduct that was contrary to fundamental public policy, and as such, are not barred by the workers' compensation exclusivity rule.

Thus, the Court **DENIES** the **motion to strike** Plaintiff's claims for emotional distress damages as to the **4th, 5th, and 8th causes of action** (Complaint, ¶ 55, 61, 87) **and Prayer for Relief**.

A. Punitive Damages

A motion to strike is the proper vehicle to attack a claim for punitive damages where facts alleged do not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Plaintiffs may recover exemplary or punitive damages where it is proven that "the defendant has been guilty of oppression, fraud or malice." (Civ. Code § 3294(a).)

While FEHA does not itself authorize punitive damages, it is settled that Civ. Code, § 3294 applies to actions brought under FEHA. (*Roberts v. Ford Aerospace & Communications Corp.* (1990) 224 Cal.App.3d 793, 798; *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1147-48.) Notwithstanding, the supporting facts must still rise to the level of malice, oppression or fraud under Civ. Code § 3294 to support the demand for punitive damages. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 64; *see also* Civ. Code § 3294(a) [permitting recovery of punitive damages “for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice”].)

To support a demand for punitive damages under Civ. Code § 3294, a plaintiff must plead and prove facts demonstrating malice, oppression or fraud as defined in Civ. Code §3294(c). As defined in the statute, “malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,” while “oppression” is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code § 3294(c)(1) and (2).) As used in the statute, “despicable conduct” is conduct which is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.)

“Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “[A] conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of 'oppression, fraud, or malice, express or implied,' within the meaning of section 3294." (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) The pleading must contain factual allegations of wrongful motive, intent, or purpose. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 317.)

"Because punitive damages are imposed 'for the sake of example and by way of punishing the defendant (§ 3294, subd. (a)), they are typically awarded for intentional torts such as assault and battery, false imprisonment, intentional infliction of emotional distress, defamation, nuisance intentionally maintained, fraud, trespass..." (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1212.) "The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages…Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate." (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

Generally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant's wrongful conduct. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7.)

An employer will not be liable for punitive damages based on the acts of its employees, "unless the employer had advanced knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (C.C.P., § 3294(b).) Officers, directors and managing agents are the employees of the corporation who exercise substantial discretionary authority over decisions that ultimately determine corporate policy; the acts of an ordinary supervisory level employee do not subject the corporation to punitive damages. (*White v. Ultamar* (1999) 21 Cal.4th 563, 573.) Thus, when the defendant is a corporation, an award of punitive damages against that corporation must rest on the malice of the corporation's employees. (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164.) A plaintiff must plead that the wrongful acts of employees of the defendant corporation were done with the knowledge or under the express direction or ratification of an officer, director or managing agent. (*Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, 614.)

Here, Plaintiff alleges that "each of the Defendants was the agent, servant, employee, joint venturer, joint owner, joint tenant, community property owner, guarantor and/or partner of each of the other co-Defendants, and in doing or failing to do the things alleged herein, each co-Defendant was acting within the scope of authority conferred upon that party by consent, approval and/or ratification of each of the other co-Defendants, whether said authority was actual or apparent." (Complaint, ¶ 4.) Accordingly, Plaintiff sufficiently alleges circumstances under which the corporate Defendant may be held liable for punitive damages.

Further, Plaintiff's allegations that Defendant wrongfully terminated him in retaliation for seeking reasonable accommodation for his cardiac condition are sufficient to rise to the level of despicable conduct to sufficiently state a claim for punitive damages based on malice and oppression.

Thus, the Court **DENIES** the motion to strike Plaintiff's claims for punitive damages as to the **4th, 5th, and 8th causes of action** (Complaint, ¶ 56, 63, 88) and **Prayer for Relief**.

In sum:

Sustain the demurrer to the 1st, 2nd, 3rd, 6th, and 7th causes of action.

Overrule the demurrer to the 4th, 5th, and 8th causes of action.

The motion to strike is **moot** as to Plaintiff's requests for emotional distress and punitive damages relating to the 1st, 2nd, 3rd, 6th, and 7th causes of action. **Deny** the motion to strike Plaintiff's requests for emotional distress and punitive damages as to the 4th, 5th, and 8th causes of action.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506532	MARTINEZ VS SOCIAL VOCATIONAL SERVICES, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: See Ruling on Demurrer

6.

CASE #	CASE NAME	HEARING NAME
CVRI2601511	THE PEOPLE OF THE STATE OF CALIFORNIA VS TOBACCO ISLAND PLUS	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: SETTLEMENT HAS BEEN REACHED.